

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

**RESPONDENT’S RESPONSE TO COMPLAINANT’S MOTION TO ENFORCE AND REQUEST
FOR EXTENSION OF TIME**

Respondent Top Shipping Systems Corp. (“TSS”), now appearing pro se following the withdrawal of counsel, respectfully submits this Response to Complainant’s Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions.

I. Preliminary Statement and Request for Extension

As an initial matter, TSS respectfully requests additional time to fully respond to the issues raised in Complainant’s Motion.

TSS is currently without legal counsel and is actively seeking replacement counsel familiar with Federal Maritime Commission proceedings and discovery obligations. TSS is a small business, and its representatives are not attorneys or legal experts. As a result, Respondent is at a substantial disadvantage in responding to the extensive legal and procedural allegations contained in Complainant’s Motion, particularly given the sanctions and dispositive relief requested.

TSS therefore respectfully requests an extension of at least twenty-one (21) days, or such other period as the Presiding Officer deems appropriate, to retain counsel and supplement this response if necessary.

Notwithstanding the foregoing, TSS submits the following good-faith responses to certain allegations contained in the Motion.

II. Responses to Allegations in Complainant's Motion

FormuKleen alleges that TSS did not produce the missing third-party communications and did not identify the Bates ranges where those communications allegedly appear.

RESPONSE: TSS did in fact produce various documents responsive to this request and supplemented the request after it found additional communications. We note that the representative for FormuKleen insisted that pointing to communications that include FormuKleen does not resolve the deficiency, however, due to the nature of the TSS's role, many of the third-party communications do in fact include FormuKleen. Further, TSS is under no obligation under either the Court's Order or the FMC rules to identify the Bates ranges for those communications.

FormuKleen asserts that TSS has not produced communications from at minimum the following third-parties: CMA CGM; DHY Shipping Line Inc.; Ningbo Qichen International Logistics Co., Ltd.; Topsealand International Co., Limited; Dolphin Logistics; Seablue Freight Container Inc.; South Florida Container Terminal or any other port terminal; and Any warehouse, trucking company, or other vendor involved in the handling of either subject container.

RESPONSE: This is a mischaracterization of what has been produced to date which does in fact include communications with DHY Shipping Line Inc.; Topsealand International Co., Limited; Dolphin Logistics; and Seablue Freight Container Inc. Again, due to the nature of the TSS's role, it may be aware of an entity's involvement because it is named on relevant documents but does not necessarily have direct communications with that entity.

FormuKleen points to the Declaration to show that TSS's search was limited given that the Declaration states in part that it searched for emails from two third-parties.

RESPONSE: This is a mischaracterization of what is stated in the Declaration which also included searches in Outlook for the term FormuKleen, communications involving FormuKleen employees, invoice numbers related to FormuKleen's shipments, Master shipment numbers related to FormuKleen's shipments, container numbers associated with FormuKleen shipments, and Bill of Lading numbers associated with FormuKleen shipments. Searching generally for communications with involved third-parties alone would likely return hundreds if not thousands of emails unrelated to FormuKleen because many of those entities were also involved in shipments and communications relating to TSS's other customers. Accordingly, TSS conducted reasonable and good-faith searches using FormuKleen-related search criteria directed toward communications and records relevant to the claims and defenses in this proceeding, including the subject shipments and related dealings between the parties. Respondent supplemented production when

additional responsive materials were identified and will promptly produce any additional responsive materials identified.

FormuKleen mentioned that some of the document production includes other entities such as Jess Transport, RDJB, Logistics Freight Solutions LLC d/b/a PRIMO, AAA Cooper, Southeastern Freight, Western Express Moving and Storage, and potentially others, however, those entities do not appear to have been identified in Respondent's supplemental interrogatory response, and Respondent's declaration does not identify searches for communications with them.

RESPONSE: These other entities are not named in the TSS's supplemental interrogatory response as the interrogatory was limited to the those involved with the subject shipments (the two containers at issue in this proceeding), while the requests for production are not limited in that way. The Declaration does not specifically identify their email addresses in the Outlook searches because the documents requested were found in connection with other searches described in the Declaration.

FormuKleen further argues that TSS's redacted communications related to FormuKleen shipments.

RESPONSE: As respondent already told FormuKleen's representative, the redacted pages (RX1093 and RX1095-RX1096) contain only information related to TSS's other clients and discuss shipments not related to FormuKleen's shipments. FormuKleen may not believe TSS, but that is the truth and TSS is under no obligation to disclose information related to shipments for its other customers that have absolutely no relation to FormuKleen or the issues in this proceeding.

FormuKleen also points to TSS's redacted payment-related pages as improper.

RESPONSE: As respondent already told FormuKleen's representative the redacted information relates to payments made by TSS to carriers for shipments not related to FormuKleen's shipments, and bank information for third parties. FormuKleen contends that "Respondent redacts records so heavily that Complainant cannot determine the shipment, customer, carrier, charge, payment, or transaction involved...". This is not true. A review of Exhibit A shows that the carrier name is visible and the Master Shipment ID, which appears on the invoices from TSS to FormuKleen. Additionally, for some of the payments, the waybill, booking information, or container number is also included. TSS is under no obligation to disclosure information related to shipments for its other customers that have absolutely no relation to FormuKleen or the issues in this proceeding.

WHEREFORE, Respondent Top Shipping Systems Corp. respectfully requests that the Presiding Officer:

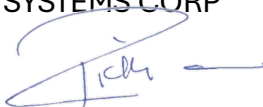
1. Deny Complainant's request for sanctions;
2. Grant Respondent an extension of at least twenty-one (21) days to retain counsel and supplement this response if necessary;
3. Permit Respondent additional time to evaluate any remaining discovery issues with replacement counsel; and
4. Grant such other and further relief as the Presiding Officer deems just and proper.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se



CERTIFICATE OF SERVICE

I hereby certify that on May 18, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, *pro se*

